

QUAERENS LTD CARAVAN CLAIM ASSESSMENT REPORT

Initial Assessment - Kennedy Vaughan v Haven Holidays Limited / Bourne Leisure Ltd

CLIENT INFORMATION MATRIX

Field	Information
Client Name	Kennedy Vaughan
Address	Not provided in the reviewed bundle
Telephone	Not provided in the reviewed bundle
Email	Not provided in the reviewed bundle
Respondent / Trader	Haven Holidays Limited / Bourne Leisure Ltd - exact contracting entity TBC
Product / Issue	Static holiday caravan purchase / replacement caravan defects and alleged pre-contract assurances
Purchase / Event Date	Exact dates TBC; bundle refers to first purchase around 2016/2017 and later upgrade discussions
Current Status	Draft litigation bundle reviewed; exhibits, dates and Schedule of Loss require completion
Assessment Date	3 July 2026

EXECUTIVE SUMMARY

Based on the bundle reviewed, this appears to be a potentially arguable caravan claim suitable for further legal partner review. The strongest point is not simply that the caravan had defects; it is that Mr and Mrs Vaughan allegedly identified those defects before purchase, Haven's representative allegedly promised that all identified remedial works would be completed before handover, and the claimant says he relied on those promises when proceeding with the replacement caravan purchase.

The documents reviewed are mostly a drafted litigation bundle rather than a fully indexed evidence pack. The narrative is coherent and repeats the same central allegation across the sections reviewed, but exact dates, purchase figures, exhibit references and the Schedule of Loss are still incomplete. Those gaps need to be closed before any formal letter before action, settlement proposal or referral to solicitors.

BACKGROUND & CHRONOLOGY

The claimant is Kennedy Vaughan. The proposed defendant is identified in the bundle as Haven Holidays Limited / Bourne Leisure Ltd. The claimant and his wife purchased a static caravan for private family use, not as an investment or commercial letting business.

The bundle explains that the family's circumstances were sensitive. It refers to their son's lymphoma treatment and Mr Vaughan's own history of three brain aneurysms and memory issues. The documents state that Haven's representative knew these circumstances and that a relationship of trust developed during the sales relationship.

After an initial caravan purchase, Haven allegedly encouraged an upgrade to a replacement caravan. Before signature, Mr and Mrs Vaughan allegedly inspected the replacement caravan, identified numerous defects and discussed them with Haven's representative, Aaron. The claimant says Aaron assured them that every defect would be rectified before handover.

The claimant says the purchase proceeded because those assurances were accepted. After handover, the promised condition was allegedly not achieved. The bundle refers to approximately seventy-one defects, repeated repair requests, formal complaints, Subject Access Request disclosure, eventual loss of confidence and preparation for litigation.

TECHNICAL FINDINGS ANALYSIS

The technical evidence is described rather than fully exhibited in the extracted bundle. The bundle refers to snagging records, photographs, inspection material, complaint correspondence and Haven internal records. Those materials will be essential because the claim depends on proving what defects existed before purchase, what Haven knew, what was promised and what remained unresolved after handover.

The most important technical task is to create a clear defect schedule. This should show each defect, whether it was identified before signature, whether Haven accepted it or promised repair, the promised completion date if any, what actually happened, and what evidence supports each point.

MORTGAGE / LENDING / PROPERTY VALUE ANALYSIS

This is not a mortgage or lending claim on the documents reviewed. For this caravan matter, the equivalent analysis is contract, consumer rights and representation analysis.

The possible routes identified from the bundle are: misrepresentation and inducement to contract, breach of contract/failure to perform agreed remedial works, potential Consumer Rights Act 2015 issues relating to satisfactory quality and pre-contract information, and complaint handling/SAR delay as supporting background evidence.

The correct legal entity and contractual terms must be checked from the purchase agreement. Any warranty, exclusion clause, 'sold as seen' wording, inspection clause or complaint time limit may materially affect the analysis.

FINANCIAL EXPOSURE

Financial exposure cannot yet be reliably calculated from the extracted bundle. The bundle says a Schedule of Loss is still to be completed. Loss evidence should include the purchase price, any part-exchange value, finance records if relevant, annual site fees, insurance, repair costs, inspection costs, removal/disposal costs, residual value and any loss of use or enjoyment claimed.

The claim should avoid broad unsupported loss figures. Each claimed figure should be supported by an invoice, statement, receipt, contract, valuation, bank record or other documentary proof.

Field	Information
Purchase Cost	TBC - purchase agreement/invoice required
Site Fees / Pitch Fees	TBC - annual statements required
Insurance / Ownership Costs	TBC - policy and payment records required
Repair / Inspection Costs	TBC - invoices and receipts required
Removal / Disposal / Residual Value	TBC - caravan was reportedly removed; full evidence required
Complaint / Document Costs	TBC - recoverability requires legal review
Overall Financial Exposure	Potentially material, but not yet quantifiable from the extracted bundle

VALUATION MATRIX

The valuation position is currently TBC. For a caravan claim, the key valuation questions are: what was paid, what the caravan was represented to be worth in the promised condition, what it was actually worth given the outstanding defects, what continuing costs were incurred, and what value was recovered when the caravan was removed or disposed of.

Field	Information
Conservative	Evidence supports a long complaint history, but loss figures and contract terms remain TBC.
Moderate	If documents prove the pre-contract defect list and clear assurances, a viable consumer claim may exist.
Strong	If Haven's own records, emails or snagging documents confirm the assurances and unresolved defects.
Exceptional	Only if liability evidence is clear, losses are fully evidenced, limitation is manageable and legal review supports proceedings.

EVIDENCE REQUIRED

The following documents should be obtained and indexed before the matter is presented as litigation-ready:

- Signed purchase agreement, terms and conditions, warranty and any 'sold as seen' or inspection wording.
- Invoice, finance agreement, part-exchange evidence and payment records.
- Pre-handover snagging list or notes showing defects identified before signature.
- Photographs/video evidence of defects, ideally dated and matched to the defect schedule.
- Emails, WhatsApp messages or notes recording Aaron/Haven's assurances.
- Haven complaint responses, repair logs, work orders and internal records from SAR disclosure.
- Evidence of annual site fees, insurance, repair costs and removal/disposal/residual value.
- Witness statements from Mr Vaughan and Mrs Vaughan covering inspection, promises, reliance and impact.

PRELIMINARY ASSESSMENT

Preliminary merits: moderate to potentially strong, subject to evidence. The case narrative is consistent and potentially compelling, especially if documentary records confirm that defects were identified before purchase and that Haven gave clear assurances before signature.

Main risk: evidence readiness and limitation. The bundle is historic and repeatedly states that dates and exhibits are still to be finalised. A solicitor should review limitation before any formal action is taken.

Operational view: this is suitable for a legal partner referral once the evidence schedule and loss schedule are complete. Quaerens should not present the claim as guaranteed or fully quantified at this stage.

RECOMMENDATIONS & NEXT STEPS

Recommended action: complete the evidence pack, quantify the loss, and submit the matter for solicitor review before any formal letter before action is issued.

- Confirm the exact contracting entity and purchase date from the sale agreement.
- Build a dated chronology from first contact through upgrade, inspection, handover, complaints, SAR, removal and solicitor involvement.
- Prepare a defect-by-defect evidence schedule with exhibit numbers.
- Prepare a quantified Schedule of Loss with documentary support for every figure.
- Obtain signed witness statements from Mr and Mrs Vaughan.
- Refer the completed pack to a legal partner for limitation and prospects advice.

Important note: This is an initial assessment only. Quaerens should use legal partners to proceed with suitable caravan cases where, after review, the evidence indicates that the client may have a viable claim.

A. Spray Foam Template

- Humidity Analysis
- Roof Structure Analysis
- Mortgage Refusal Analysis
- Removal & Remediation Analysis

B. Solar Template

- FIT Analysis
- Performance Analysis
- Warranty Analysis
- Finance Agreement Analysis

C. Holiday Park Template

- Site Fee Review
- Buy-Back Analysis
- Rental Promise Analysis

D. Multi-Product Template

- Separate Product Sections
- Combined Financial Exposure
- Combined Valuation Matrix

